

MUTUAL NONDISCLOSURE AGREEMENT

BY AND BETWEEN ~~<CLIENT>~~ BOSS KEY LLC AND REVENUE-IQ

Light redline prepared March 13, 2026

Legend:

~~Deleted text~~

Added text

THIS NONDISCLOSURE AGREEMENT (the "Agreement") is made by and between ~~<CLIENT>~~ ("~~<CLIENT>~~") Boss Key LLC ("Boss Key") and Service Performance, Inc., a Washington corporation doing business as Revenue-IQ ("Revenue-IQ"), effective as of the later the two signature dates hereof.

RECITALS

- A. ~~<CLIENT>~~ Boss Key and Revenue-IQ each wish to disclose certain proprietary and confidential information to the other, and to review certain proprietary and confidential information of the other, for the purposes of sales, proposals, presentations, and any resulting Schedules of Work entered into by the parties hereof (the "Purposes").
- B. ~~<CLIENT>~~ Boss Key and Revenue-IQ are each willing to disclose certain proprietary and confidential information to the other, and are each willing to receive, protect and use the other's confidential and proprietary information solely under the terms set forth in this Agreement.

AGREEMENT

In consideration of the mutual promises and covenants contained in this Agreement and each party's prospective disclosure of confidential and proprietary information to the other party, and intending to be legally bound, the parties hereto agree as follows:

1. Confidential Information and Confidential Materials

- (a) "Confidential Information" means nonpublic information that either party designates as being confidential or proprietary or which, under the circumstances surrounding disclosure, ought to be treated as confidential. "Confidential Information" includes, without limitation, information relating to the disclosing party's inventions, research, testing results, released or unreleased products or services, marketing or promotion of any product or service, contracts, business plans, policies, and practices, and information received from others that the disclosing party is obligated to treat as confidential. ~~<CLIENT>~~ Boss Key and Revenue-IQ agree that any proprietary or confidential information which they have disclosed to each other prior to the date of this Agreement in connection with the Purposes shall be subject to terms and conditions hereof.
- (b) Confidential Information shall not include any information that: (i) is or subsequently becomes publicly available without the receiving party's breach of any confidentiality obligation owed to the disclosing party; (ii) became known to the receiving party prior to disclosure of such information by the disclosing party; (iii) became known to the receiving party from a source other than the disclosing party hereunder, other than by the breach of an obligation of any confidentiality owed to the disclosing party; or (iv) is independently developed by the receiving party without use of any Confidential Information of the disclosing party.
- (c) "Confidential Materials" shall mean all tangible materials containing Confidential Information, including without

limitation written or printed documents and computer disks or tapes, whether machine or user readable.

2. Restrictions

(a) Each party expressly acknowledges that the Confidential Information of the other party consists of trade secrets and proprietary property having significant commercial value, and that knowledge of all or any part of the Confidential Information would potentially yield a competitive advantage over others not having such knowledge. Accordingly, neither party shall disclose any Confidential Information of the other party to any third party (except to the receiving party's directors, employees, consultants, and affiliated associations) as provided below) for five (5) years following the date of disclosure of such Confidential Information. Each party may, however, disclose Confidential Information of the other party in accordance with judicial or other governmental order or as necessary to comply with any applicable law or regulation governing regulated businesses or the issuance of securities to the public, provided the party making such disclosure gives the other party reasonable notice prior to such disclosure and, in the case of a judicial or governmental order, complies with any applicable protective order or equivalent.

(b) Each party shall take reasonable security precautions, at least as great as the precautions it takes to protect its own confidential information of a similar nature, to keep confidential the other party's Confidential Information and Confidential Materials. The receiving party may disclose the other party's Confidential Information or Confidential Materials to such receiving party's directors, employees, parent or subsidiary corporations, or consultants only on a need-to-know basis. Each party shall enter into and maintain appropriate written agreements with its directors, employees, parent or subsidiary corporations, consultants, and other parties necessary under the circumstances, sufficient to enable it to comply with all provisions of this Agreement.

(c) Each party agrees to use Confidential Information and Confidential Materials of the other party only in pursuance of the Purposes described above. ~~Each party agrees to segregate all Confidential Materials of the other party from the confidential materials of third parties in order to prevent commingling.~~ Each party agrees to use commercially reasonable efforts to identify and handle the other party's Confidential Materials in a manner that avoids unnecessary commingling.

(d) Neither party shall use the other party's Confidential Information to train or fine-tune any public or shared AI model without the disclosing party's prior written consent.

~~(d)~~(e) The receiving party agrees to notify the disclosing party in writing of any misuse or misappropriation of Confidential Information or Confidential Materials of the disclosing party which may come to the receiving party's attention.

3. Rights and Remedies

(a) Each party shall promptly ~~return~~ return or destroy, at the disclosing party's request, all originals, copies, reproductions and summaries of Confidential Information and Confidential Materials of the other party , except for archival copies retained in ordinary-course backups, immutable logs, and materials required to be retained by law, regulation, tax, insurance, or professional obligation, all of which shall remain subject to this Agreement.

(b) Each party acknowledges that monetary damages may not be a sufficient remedy for unauthorized disclosure of Confidential Information or Confidential Materials of the other party, and that the disclosing party shall be entitled, without waiving any other rights or remedies, to such injunctive or equitable relief as may be deemed proper by a court of competent jurisdiction.

4. Miscellaneous

(a) No rights or obligations other than those expressly recited herein are to be implied by this Agreement, and nothing contained herein shall be construed as granting a license or any other right under any patent, copyright, trademark, trade secret, or other intellectual property right.

(b) Any expiration or termination of this Agreement or any portions hereof shall not alter or affect the rights or obligations, including but not limited to the obligations of Section 2 above, of the parties arising during the term hereof with respect to Confidential Information disclosed by one party to the other prior to such expiration or termination. All of the rights and obligations of Section 2 shall expire five (5) years from the date of first disclosure hereunder of the Confidential Information concerned.

(c) If any provision of this Agreement or its application is construed to be invalid or unenforceable, then all other provisions and their application shall not be affected and shall be fully enforceable without regard to the invalid or unenforceable provision. If any provision in this Agreement is determined to be unenforceable in equity because of its scope, duration, or other factor, then the court making that determination shall have the power to reduce or limit such scope, duration, or other factor, and such provision shall be enforceable in equity in its reduced or limited form.

(d) During the discussions between ~~<CLIENT>~~ Boss Key and Revenue-IQ and for twelve (12) months after the termination of these discussions, neither Revenue-IQ nor ~~<CLIENT>~~ Boss Key will directly solicit any employee to leave his or her employment with the other party ~~;-or offer employee(s) outside or "moonlighting" work that conflicts with the other party's business interest. ;~~ provided, however, that this restriction shall not apply to general solicitations not targeted at such employee or to unsolicited inquiries initiated by such employee.

(e) If either party employs attorneys to enforce any rights arising out of or relating to this Agreement, the prevailing party shall be entitled to recover reasonable attorneys' fees. ~~This Agreement shall be construed and controlled by the laws of the State of Washington, and each party consents to the exclusive personal jurisdiction of and venue in the state and federal courts sitting in King County, Washington.~~ This Agreement shall be construed and controlled by the laws of the State of New Jersey, and each party consents to the personal jurisdiction of and venue in the state and federal courts sitting in New Jersey, unless otherwise agreed in writing.

(f) All obligations created by this Agreement shall survive change or termination of the parties' business relationship.

(g) This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and merges all prior discussions and understandings between them as to Confidential Information or Confidential Materials. It shall not be modified except by a written agreement dated subsequent to the date of this Agreement and signed by both parties. None of the provisions of this Agreement shall be deemed to have been waived by any act or acquiescence on the part of the disclosing party. Waiver shall be effective only if made by an express instrument in writing signed by an authorized officer of the disclosing party.

IN WITNESS WHEREOF

the parties hereto have executed this Agreement as of the dates shown below.

~~<CLIENT>~~ Boss Key LLC Revenue-IQ

By: _____ By: _____

Date: _____ Date: ~~<Month Day, Year>~~ _____

Name: Timothy Charles Semenza Christopher Arlen, PRESIDENT

Title: Sole Member